

Comprehensive Legal and Administrative Analysis: Remedying Discriminatory Practices, Administrative Negligence, and Data Subject Access in Higher Education

1. Executive Synthesis and Thematic Overview

The modern higher education sector in the United Kingdom operates at the intersection of complex statutory frameworks, encompassing public administrative law, private contract law, stringent data protection regulations, and comprehensive equality mandates. When a higher education institution (HEI) such as University College London (UCL) and its Institute of Education (IOE) fails to synchronize its bureaucratic processes with its legal obligations toward students with complex disabilities, the resulting systemic failures can precipitate devastating academic and financial consequences.

This research report provides an exhaustive, multi-layered legal and administrative analysis of the mechanisms available to secure redress for a specific matrix of institutional failures. The scenario under examination involves severe administrative negligence regarding the processing of a Disclosure and Barring Service (DBS) certificate, subsequent discriminatory enforcement of academic deadlines, and deliberate misrepresentation by an institutional representative to a student welfare officer. Specifically, the analysis focuses on a student presenting with a Traumatic Brain Injury (TBI) and Complex Post-Traumatic Stress Disorder (CPTSD) whose clean DBS certificate was granted on June 18 but retained by the university until August 28.¹ This 71-day delay directly caused the student to miss an August 26 deadline for an Initial Teacher Education (ITE) "guest teaching" placement, precipitating the catastrophic loss of both a scholarship and a maintenance loan.³

Furthermore, this report addresses the procedural mechanics of utilizing the UK General Data Protection Regulation (UK GDPR) via a Subject Access Request (SAR) to compel the identification of an unnamed male IOE representative who allegedly provided false information during a Zoom meeting with the Head of Student Wellbeing.⁶ By uncovering this individual's identity, the report evaluates the viability of pursuing civil litigation against the employee in his personal capacity for deceit and negligent misstatement, juxtaposed against the strategic advantages of pursuing the university under the doctrine of vicarious liability.⁹

2. The Equality Act 2010: Statutory Protections and

Institutional Duties

The Equality Act 2010 serves as the primary legislative instrument protecting individuals from discriminatory practices within the provision of education and services. Higher education institutions are legally bound by the anticipatory and proactive duties outlined within this legislation, specifically regarding the accommodation of complex neurocognitive and psychiatric conditions.

2.1 Statutory Classification of TBI and Complex PTSD

Under Section 6 of the Equality Act 2010, an individual is legally classified as disabled if they possess a physical or mental impairment that exerts a "substantial and long-term adverse effect" on their ability to carry out normal day-to-day activities.¹² The legislation adopts a functional rather than purely diagnostic approach; it evaluates the restrictive impact of the impairment on the individual's life rather than the specific medical terminology applied to it.¹⁴ Traumatic Brain Injuries (TBIs) and Complex Post-Traumatic Stress Disorder (CPTSD) unequivocally meet this statutory threshold.¹⁷ TBIs are acquired neurological injuries resulting from external trauma that disrupt normal brain function, frequently manifesting in profound deficits regarding executive functioning, attention span, memory retention, and the ability to process complex administrative instructions.¹⁹ Concurrently, CPTSD represents a severe psychiatric condition characterized by hyperarousal, emotional dysregulation, dissociative episodes, and profound anxiety, particularly when the individual is subjected to institutional stress or bureaucratic confrontation.¹³

For a student navigating the demanding environment of an ITE program at the UCL Institute of Education, the synergistic effects of TBI and CPTSD severely compromise their ability to independently mitigate the consequences of institutional errors. The Equality Act 2010 explicitly acknowledges that mental illnesses and cognitive impairments produced by injury to the brain trigger the statutory protections afforded to disabled persons, thereby obligating the university to recognize and accommodate these vulnerabilities.¹³

2.2 The Anticipatory Duty to Make Reasonable Adjustments

Section 20 of the Equality Act 2010 imposes an anticipatory and continuing duty on higher education providers to make "reasonable adjustments".¹⁵ This duty is activated when a "Provision, Criterion, or Practice" (PCP) applied by or on behalf of the university places a disabled student at a substantial disadvantage compared to persons who are not disabled.²⁴ While universities traditionally focus on pedagogical adjustments—such as providing extra time in examinations, utilizing assistive technology, or modifying assessment formats²⁷—the statutory duty extends comprehensively to the university's administrative and procedural operations.²⁶ The strict enforcement of a placement deadline (e.g., August 26 for guest teaching) constitutes a PCP. When this PCP is rigidly enforced against a student whose

compliance was rendered impossible by the university's own administrative failure to deliver a DBS certificate, the institution commits an act of indirect disability discrimination.²⁴

Furthermore, recent jurisprudence has emphatically reinforced the supremacy of the Equality Act over internal university regulations. In the landmark High Court ruling of *University of Bristol v Dr Robert Abrahart* EWHC 299, the court unequivocally determined that an institution's failure to proactively propose and implement adjustments to its PCPs constitutes a breach of statutory duty.³¹ The *Abrahart* judgment clarified that universities cannot hide behind their own rigid regulations or claim that the student failed to adequately request specific accommodations; the duty lies squarely with the institution to anticipate and remove barriers.³²

2.3 Deconstructing the "Competence Standard"

Defence

A frequent legal defence employed by universities facing discrimination claims is to classify the contested PCP as a "competence standard." Under the Equality Act 2010, universities are not legally required to make reasonable adjustments to the application of a competence standard, which is defined as an academic, medical, or other standard applied for the purpose of determining whether a person has a particular level of competence or ability.³⁰

However, the administrative timeline for submitting a DBS certificate or registering for a guest teaching placement does not evaluate a student's academic proficiency or pedagogical skill; it is a purely bureaucratic prerequisite designed to satisfy safeguarding regulations.³⁰ As demonstrated in the *Abrahart* case, courts interpret the definition of a competence standard narrowly.³⁴ The failure of UCL IOE to adjust a procedural deadline—or to implement alternative arrangements to preserve the student's scholarship and maintenance loan while the internal DBS delay was resolved—cannot be legally shielded by the competence standard defence.³⁴ The refusal to adjust this deadline, particularly when the delay was caused by the university's own Student Registry Services (SRS) Compliance team, represents an actionable failure to make reasonable adjustments.²⁶

Equality Act 2010 Component	Application to the Present Case	Institutional Failure
Section 6: Disability Definition	The student's TBI and CPTSD cause substantial, long-term adverse effects on executive function and stress management. ¹²	Failure to recognize the compounded vulnerability of the student when subjected to extreme administrative stress and financial threat.
Section 20: Reasonable Adjustments	The enforcement of the August 26 deadline is a PCP causing substantial disadvantage. ²⁴	Refusal to extend the deadline, provide alternative placements, or secure interim funding despite the university's culpability in the DBS delay.

Competence Standard Exemption	Administrative deadlines and background check processing timelines are not academic competence standards. ³⁰	Unlawful application of rigid internal rules to bypass the statutory duty of accommodation, contravening the principles established in <i>Abrahart</i> . ³²
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3. The Disclosure and Barring Service (DBS): Institutional Obligations and Administrative Negligence

The crux of the administrative failure in this scenario revolves around the processing and delivery of the Enhanced DBS certificate. To evaluate the legal liability of the university, it is necessary to dissect the statutory role of higher education institutions within the national safeguarding framework and the precise timelines governing DBS processing.

3.1 The Statutory Role of the University as a Registered Body

In the United Kingdom, individuals undertaking Initial Teacher Education (ITE) programmes involving regulated activity with children or vulnerable adults are legally mandated to obtain an Enhanced DBS check with a Barred List check.³⁸ Under the Police Act 1997 and the Safeguarding Vulnerable Groups Act 2006, an individual cannot independently apply for an Enhanced DBS check; the application must be facilitated and countersigned by an authorized Registered Body.³⁸

In the higher education context, the university acts as the Registered Body, assuming strict legal and procedural responsibilities for the initiation, verification, and processing of student DBS checks.⁴⁰ At UCL, this responsibility falls under the purview of the Student and Registry Services (SRS) Compliance team.⁴³ The SRS Compliance team, alongside third-party umbrella organizations such as Atlantic Data, manages the identity verification process and liaises directly with the governmental Disclosure and Barring Service.⁴³

3.2 Analyzing the Chronology of Administrative Negligence

The timeline provided indicates a profound collapse in UCL's administrative competency. The DBS certificate was officially granted and cleared by the governmental authority on June 18.¹ However, the certificate was not communicated or dispatched to the student until August 28.¹ UCL's own internal guidelines stipulate that once an application is submitted and identity documents are verified, certificates are typically issued by the DBS within one working week.¹ A delay of 71 days between the issuance of the certificate by the government and its transmission

to the student by the university is an extraordinary deviation from standard operating procedures.¹

Under Section 124 of the Police Act 1997, Registered Bodies are bound by a strict Code of Practice regarding the handling, storage, and timely communication of DBS disclosure information.² The failure of the SRS Compliance team to act upon the cleared certificate for over ten weeks demonstrates a clear breach of administrative duty.² Furthermore, the fact that this delay persisted precisely until two days *after* the critical August 26 "guest teaching" deadline suggests a level of institutional negligence that directly precipitated the student's academic and financial detriment.³

Process Stage	Standard Protocol	Actual Timeline	Variance and Implication
Government Issuance	1 to 2 weeks post-ID verification. ¹	June 18	Certificate officially cleared. University receives notification of clearance.
University Processing	Immediate dispatch and system update upon receipt. ¹	Delayed until August 28	71-day retention without justification. Severe breach of administrative duty.
Academic Deadline	Varies by programme; late August for autumn starts. ⁴⁹	August 26	Student misses mandatory milestone solely due to the 71-day institutional delay.
Financial Consequence	Continuation of funding based on placement commencement. ⁴	Post-August 26	Immediate revocation of scholarship and maintenance loan due to missed deadline.

4. Financial Detriment: The Scholarship and Maintenance Loan Loss

The catastrophic consequence of the university's administrative negligence was the loss of the student's scholarship and maintenance loan. In civil litigation, this represents a highly quantifiable claim for special damages arising from a breach of contract and professional negligence.

4.1 The Contractual Relationship in Higher Education

The relationship between a student and a higher education institution in the UK is fundamentally contractual, described by the Court of Appeal in *Clarke v Lincolnshire & Humberside* as a hybrid

governed by both public and private law.⁵¹ Students pay substantial tuition fees—or are awarded competitive scholarships—in exchange for the university's promise to provide a structured educational programme, competent administrative support, and adherence to safeguarding and equality regulations.⁵¹

The university's failure to process the DBS certificate within a reasonable timeframe, coupled with its refusal to implement reasonable adjustments to mitigate the impact of its own error, constitutes a material breach of this student contract.⁵¹ When a university's breach of contract directly causes a student to lose their funding, the institution is liable for the foreseeable financial losses incurred.⁵¹

4.2 Quantifying Special Damages

The loss of a scholarship and a maintenance loan constitutes direct financial harm. Scholarships at the UCL IOE, such as the Centenary Master's or Doctoral Scholarships, cover full tuition fees and provide substantial stipends for living expenses.⁵ Similarly, maintenance loans are distributed in highly regulated instalments, often coordinated by payment administrators like Flywire for international or specialized funds.⁴

The Office of the Independent Adjudicator (OIA), the ombudsman for higher education disputes, has clear guidelines on compensating students for actual financial loss resulting from institutional maladministration.⁵² If a student is prevented from taking up a placement or loses a bursary due to an error by the provider, the OIA and the civil courts will compel the university to reimburse the exact value of the lost funds.⁵² Therefore, a civil suit targeting the institutional failure has a highly robust foundation for recovering the totality of the lost scholarship and loan amounts.⁵²

5. Data Recovery Strategy: Executing a Subject Access Request (SAR)

To pursue a civil claim against the specific male IOE representative who allegedly lied during a Zoom meeting, the claimant must definitively establish his identity. This requires leveraging the statutory powers provided by the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018 through a targeted Subject Access Request (SAR).

5.1 The Mechanics of a SAR under UK GDPR Article 15

Article 15 of the UK GDPR grants individuals the right to access personal data held about them by a data controller, which in this instance is UCL.⁶ Personal data is interpreted broadly and encompasses any information relating to an identified or identifiable natural person.⁵⁶ This includes student record files, interview notes, email correspondence, and critically, metadata and recordings from digital communication platforms like Zoom.⁷

To initiate the process, the student must submit the official UCL Subject Access Request Form

(Form 6) to the Data Protection Officer (DPO) via data-protection@ucl.ac.uk.⁵⁶ The Information Commissioner's Office (ICO) stipulates that organizations must respond to a SAR without delay and within one calendar month, although complex requests may be extended by an additional two months.⁵⁵ To prevent the university from rejecting the request as "manifestly unfounded or excessive"⁵⁹, the SAR must be highly specific regarding the data sought.

5.2 Extracting Identity from Zoom's Data Architecture

Zoom's data retention policies and technical architecture provide multiple avenues for recovering the identity of meeting participants, even if a formal video recording was not initiated. A targeted SAR should demand the following specific data clusters from the UCL DPO:

1. **Meeting Diagnostic Data and Participant Logs:** Zoom retains "Meeting, Webinar, and Team Chat Diagnostic Data" for 15 months from the date of collection.⁶⁰ This diagnostic metadata includes the IP addresses, device information, joining and leaving timestamps, and the registered account names of all participants who entered the meeting.⁸ This is the most direct method for identifying the unnamed male representative.
2. **Cloud Recordings and Chat Transcripts:** If the meeting was recorded, UCL's retention policy dictates that Zoom Cloud recordings are retained for 3 years (1095 days).⁶¹ After 1095 days, recordings are moved to a "Trash" folder where they undergo a "soft deletion" phase, remaining recoverable by account administrators for an additional 30 days before permanent purging.⁶¹ Furthermore, Zoom retains Team Chat data and meeting transcripts for 24 months by default.⁶⁰
3. **Internal Email Correspondence:** The SAR should demand all internal email correspondence referencing the student's name or ID number exchanged between the Head of Student Wellbeing and the IOE leadership teams in the weeks surrounding the Zoom meeting.⁵⁶

5.3 Overcoming the Third-Party Data Exemption

A standard institutional defence against disclosing names in a SAR is the assertion that doing so would unlawfully reveal the personal data of a third party.⁵⁹ UCL's internal guidance notes that a SAR may be refused if the requested information contains data about another individual who has not consented to its release.⁵⁹

However, this exemption is severely limited when applied to public authority employees acting in their official, professional capacity. The ICO consistently rules that the names, job titles, and professional actions of public sector staff carrying out their organizational duties do not carry the same expectation of privacy as private citizens.⁵⁵ Because the male IOE representative was attending an official welfare and compliance meeting on behalf of the university, his identity and his statements made in that professional capacity cannot be legally withheld under the guise of third-party privacy.⁵⁵

Data Target	Relevant Retention	SAR Specification	Justification for
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	Policy		Release
Zoom Diagnostic Logs	15 months. ⁶⁰	Request all participant logs for meetings hosted by the Head of Wellbeing on the specific date.	Operational metadata necessary to identify individuals interacting with the data subject.
Zoom Cloud Recordings	3 years (1095 days) + 30 days soft delete. ⁶¹	Request video, audio, and chat transcripts of the specific meeting. ⁷	Constitutes the data subject's personal data generated during an official institutional interaction.
Internal Emails	Subject to general institutional retention (often 3-7 years).	Request correspondence between SSW and IOE referencing the DBS delay or placement cancellation.	Necessary to uncover the rationale behind the discriminatory enforcement of the deadline.
Third-Party Names	Evaluated on a case-by-case basis. ⁵⁹	Explicitly demand the unredacted name and title of the male IOE representative.	Public officials acting in a professional capacity do not have an absolute right to privacy regarding their official actions. ⁵⁵

6. Institutional Mapping: Identifying the Actors at UCL

To effectively target the SAR and prepare for civil litigation, it is crucial to understand the bureaucratic hierarchy of UCL's Student and Registry Services (SRS) and the Institute of Education (IOE). The narrative indicates a structural conflict wherein a representative of the IOE provided false information to the Head of Student Wellbeing, thereby preventing the welfare department from executing its protective mandate.

6.1 The Student Support and Wellbeing (SSW) Directorate

UCL's SSW is a vast directorate tasked with providing reasonable adjustments, mental health support, and pastoral care to the university's 50,000+ students.⁶³ The leadership structure includes:

- **Director of Student Support and Wellbeing Services:** Denise Long, who also serves as the Designated Safeguarding Lead.⁶⁵
- **Head of Student Support and Wellbeing Services (Disability, Neurodiversity, Mental Health and Wellbeing):** Chilima Sianyeuka.⁶⁵ Given the specific remit of her role, it is highly probable that Ms. Sianyeuka is the "Head of Student Wellbeing" who attempted to

assist the student and to whom the false statements were directed.

- **Deputy Director / Head of SSW (Development, Communications and Projects):** Mitesh Vagadia, who manages complex student cases and return-to-study processes.⁶⁶
- **Services Managers:** The operational management of disability and mental health services is handled by staff such as Kleo Kourmpi, Stacey Korsbrek, and Belinda Bains.⁶⁹

The narrative explicitly notes that the Head of Student Wellbeing was attempting to assist the student but was thwarted by the IOE representative. This dynamic highlights a critical failure of internal governance, where the safeguarding and equality mandates of the SSW were overridden by the bureaucratic intransigence of the academic faculty.⁷⁰

6.2 The Institute of Education (IOE) and Compliance Leadership

The male representative who allegedly misrepresented the university's statutory obligations is affiliated with the IOE, likely operating within the Initial Teacher Education (ITE) administration, professional practice placements, or compliance departments. Key male figures within this operational matrix include:

- **Director of Operations (IOE):** Simon Buller.⁷¹ As Director of Operations, he oversees the day-to-day administrative functions of the faculty and ensures alignment with UCL's broader compliance frameworks.⁷¹
- **Head of Initial Teacher Education (IOE):** Dr. Jasper Green.⁷⁴ The Head of ITE holds overall statutory responsibility for ensuring that IOE's programmes comply with Department for Education safeguarding criteria and placement requirements.⁷⁵
- **Director of Education Administration and Student Support (IOE):** A senior professional role responsible for leading a team of over 90 staff who manage education administration, quality assurance, and student support across the IOE.⁴⁹

The misrepresentation perpetrated by the IOE representative—falsely claiming that the Institute was bound by rigid obligations that prevented them from allowing the student to proceed, despite the university itself being the sole cause of the 71-day DBS delay—represents a profound breach of the duty of care and a deliberate subversion of the Equality Act's requirement for reasonable adjustments.¹

7. Civil Litigation Avenues: Individual vs. Vicarious Liability

The claimant has articulated a specific intention to file a civil suit against the individual male IOE representative in his personal capacity. While emotionally resonant, pursuing an individual employee presents complex legal and strategic challenges under UK tort law. A comparative analysis of individual liability versus institutional vicarious liability is essential for maximizing the probability of recovering the lost scholarship and maintenance funds.

7.1 Suing the Individual Employee: Deceit and

Negligent Misstatement

To succeed in a personal claim against the IOE representative, the claimant must satisfy the rigorous legal thresholds for either the Tort of Deceit (Fraudulent Misrepresentation) or Negligent Misstatement.¹¹

1. **Fraudulent Misrepresentation (The Tort of Deceit):** Under the Misrepresentation Act 1967 and common law precedents, the claimant must prove that the male employee made a false representation of fact *knowingly*, without belief in its truth, or recklessly/carelessly as to whether it was true or false.¹¹ Furthermore, it must be proven that the employee intended for the Head of Wellbeing and the student to rely upon this false statement, and that the student suffered a financial loss (the scholarship/loan) as a direct result.⁷⁸ If the employee deliberately lied about IOE policies to manufacture a justification for removing the disabled student from the programme, or to conceal the SRS Compliance team's 71-day delay, this constitutes actionable deceit.¹¹
2. **Negligent Misstatement:** Based on the seminal House of Lords decision in *Hedley Byrne & Co Ltd v Heller & Partners Ltd* AC 465, a claimant can recover pure economic loss resulting from negligent advice if a "special relationship" exists.¹¹ The claimant must prove that the IOE representative assumed a responsibility to provide accurate information regarding placement deadlines and statutory obligations, that he breached this duty by providing careless advice to the Head of Wellbeing, and that the student reasonably relied on this advice to their financial detriment.¹¹

The Court of Appeal case of *Merrett v Babb* (2001) firmly establishes that an employee can be held personally liable for professional negligence if they make official determinations that result in damage, entirely independent of their employer's liability.¹⁰ Therefore, the legal mechanism to sue the man individually exists. However, the strategic vulnerability of this approach is financial recovery; an individual employee is unlikely to possess the personal wealth required to compensate for the loss of a multi-year scholarship and maintenance loan, and they may not be indemnified by the university's professional liability insurance if they acted fraudulently.¹⁰

7.2 The Strategic Superiority of Vicarious Liability

In contrast to individual liability, vicarious liability is a doctrine of strict liability wherein an employer (UCL) is held automatically liable for the tortious acts of its employees, provided those acts were committed "in the course of employment".⁹

The UK Supreme Court has refined a two-stage test for establishing vicarious liability:

1. **The Relationship Test:** Is the relationship between the tortfeasor and the defendant one of employment or "akin to employment"? (*Various Claimants v Catholic Child Welfare Society* UKSC 56).⁸⁴
2. **The Close Connection Test:** Is there a sufficiently close connection between the wrongdoing and the acts the employee was authorized to perform, making it just and reasonable to hold the employer liable? (*Mohamud v Wm Morrison Supermarkets Plc* UKSC 11).⁸⁴

When an IOE academic or administrative manager misrepresents institutional policy or statutory obligations during an official student welfare meeting, this act is inextricably interwoven with their professional duties and the authority vested in them by the university.⁸⁵ Consequently, UCL is vicariously liable for the financial and psychological harm caused by that misrepresentation, even if the university's senior management did not authorize the employee to lie.⁸⁷ From a strategic litigation perspective, pursuing the university via vicarious liability is significantly more advantageous than pursuing the individual.⁸² UCL possesses the institutional "deep pockets," comprehensive professional indemnity insurance, and the administrative power to fully restore the lost scholarship, reinstate the maintenance loan, and pay substantial damages for the distress caused by the prolonged discrimination and negligence.⁵²

Legal Doctrine	Target Defendant	Burden of Proof	Financial Recovery Potential
Fraudulent Misrepresentation (Deceit)	The Individual IOE Representative. ⁷⁸	High. Must prove deliberate deception, malicious intent, or severe recklessness regarding the truth. ¹¹	Low to Moderate. Depends on the individual's personal assets. May be voided from corporate insurance. ¹⁰
Negligent Misstatement	The Individual IOE Representative. ¹⁰	Moderate. Must prove a duty of care, careless advice, and reliance leading to loss (<i>Hedley Byrne</i>). ¹¹	Low to Moderate. Individual liability applies, but insurance indemnification is uncertain. ¹⁰
Vicarious Liability	University College London (UCL). ⁹	Moderate. Must prove the employee committed a tort while acting "in the course of employment" (<i>Mohamud</i>). ⁸⁴	High. The university possesses comprehensive liability insurance and substantial institutional resources. ⁸²
Breach of Equality Act 2010	University College London (UCL). ³¹	Moderate. Must prove failure to make reasonable adjustments to a PCP, causing substantial disadvantage. ²⁴	High. Courts readily award damages for financial loss and injury to feelings in discrimination cases (<i>Abrahart</i>). ³³

8. Strategic Legal Roadmap and Conclusion

The convergence of a 71-day administrative delay in processing a statutory DBS certificate, the discriminatory enforcement of a placement deadline against a student with complex neurocognitive disabilities, and deliberate misrepresentation by academic staff constitutes a

profound systemic failure by University College London and the Institute of Education. To secure restorative justice and financial restitution, the following phased legal strategy is recommended:

Phase 1: Information Extraction and Identification The immediate priority is the execution of a highly specific Subject Access Request (SAR) directed to the UCL Data Protection Officer (data-protection@ucl.ac.uk). This SAR must explicitly demand the extraction of Zoom diagnostic data, participant logs, cloud recordings, and internal email correspondence from the exact date of the meeting.⁵⁶ Because Zoom's diagnostic data is retained for 15 months and cloud recordings for 3 years, the digital footprint identifying the male IOE representative remains fully recoverable.⁶⁰ The university cannot lawfully use the third-party data exemption to shield the identity of a public official acting in their professional capacity.⁵⁵

Phase 2: Evidencing the Breach of Statutory Duty Simultaneously, the claimant must formalize the evidence demonstrating that their Traumatic Brain Injury and Complex PTSD satisfy the Section 6 criteria of the Equality Act 2010.¹³ The core of the legal argument will rest on Section 20: demonstrating that the rigid enforcement of the August 26 guest teaching deadline was a discriminatory Provision, Criterion, or Practice (PCP).²⁴ Drawing upon the precedent established in *University of Bristol v Dr Robert Abrahart*, the claimant can definitively argue that the university's failure to extend this deadline or provide interim funding—especially when the university's own SRS Compliance team caused the 71-day DBS delay—represents an unlawful failure to make reasonable adjustments.³²

Phase 3: Formalizing the Civil Claim With the identity of the IOE representative secured via the SAR, the claimant should issue a formal "Letter Before Action" initiating civil proceedings. While the claimant may name the individual employee as a co-defendant for the torts of deceit or negligent misstatement, the primary target for financial recovery must be UCL.¹⁰ By asserting causes of action for breach of contract, breach of the Equality Act 2010, and vicarious liability for the employee's misrepresentations, the claimant maximizes the legal pressure on the institution.⁵¹

Ultimately, the bureaucratic machinery of higher education must remain subservient to the statutory mandates of equality, safeguarding, and contract law. When an institution obfuscates its own administrative negligence through deceit, and subsequently penalizes a disabled student with the revocation of vital scholarship and maintenance funding, the civil courts and data protection regulations provide the necessary architecture to compel transparency, accountability, and comprehensive financial restitution.

Works cited

1. Disclosure and Barring Service (DBS) applications | Study at UCL, accessed on March 17, 2026, <https://www.ucl.ac.uk/study/current-students/policies/conduct/disclosure-and-barring-service-dbs-applications>
2. principles and procedures for dbs checks and criminal record declarations section 1 – regulated activ - Sheffield Hallam University, accessed on March 17, 2026, <https://www.shu.ac.uk/-/media/home/myhallam/university-life/rules-and-regs/study/criminal-record-and-declaration-principles-and-procedures.pdf>

3. (PDF) Assessing intercultural capacities - ResearchGate, accessed on March 17, 2026,
https://www.researchgate.net/publication/312533324_Assessing_intercultural_capacities
4. US Loans Payments | UCL Scholarships and funding, accessed on March 17, 2026,
<https://www.ucl.ac.uk/scholarships/us-student-financial-aid/us-loans-payments>
5. Scholarships and funding | UCL Institute of Education, accessed on March 17, 2026,
<https://www.ucl.ac.uk/ioe/about-ioe/our-global-reach/scholarships-and-funding>
6. Subject Access Request Guidance - University of Suffolk, accessed on March 17, 2026,
<https://www.uos.ac.uk/about/our-university/data-governance/subject-access-request/>
7. Recording in Zoom | Information Services Division - UCL – University College London, accessed on March 17, 2026,
<https://www.ucl.ac.uk/isd/services/communicate-collaborate/zoom/recording-zoom>
8. Zoom Privacy Statement, accessed on March 17, 2026,
<https://www.zoom.com/en/trust/privacy/privacy-statement/>
9. Vicarious Liability UK: What Does Vicariously Liable Mean? - Marsh Commercial, accessed on March 17, 2026,
<https://www.marshcommercial.co.uk/articles/what-is-vicarious-liability-and-what-does-it-mean-for-employers.html>
10. Liability Briefing - Construction Industry Council, accessed on March 17, 2026,
<https://www.cic.org.uk/uploads/files/old/personal-liability-of-employees.pdf>
11. A reminder of the risk of misrepresentation - Walker Morris, accessed on March 17, 2026,
<https://www.walkermorris.co.uk/comment-opinion/a-reminder-of-the-risk-of-misrepresentation/>
12. Check if you're protected from disability discrimination - Citizens Advice, accessed on March 17, 2026,
<https://www.citizensadvice.org.uk/law-and-courts/discrimination/check-if-youre-protected-from-discrimination/what-counts-as-disability/>
13. Disability: Equality Act 2010 - Guidance on matters to be taken into account in determining questions relating to the definition of disability (HTML) - GOV, accessed on March 17, 2026,
<https://www.gov.uk/government/publications/equality-act-guidance/disability-equality-act-2010-guidance-on-matters-to-be-taken-into-account-in-determining-questions-relating-to-the-definition-of-disability-html>
14. Possible Reasonable Adjustments for Disabled Students in Further Education - Anna Kennedy Online, accessed on March 17, 2026,
<https://annakennedyonline.com/possible-reasonable-adjustments-for-disabled-students-in-further-education/>
15. Reasonable adjustments in college and university | Disability charity Scope UK, accessed on March 17, 2026,

- <https://www.scope.org.uk/advice-and-support/reasonable-adjustments-college-university>
16. Check if you're disabled under the Equality Act - Citizens Advice, accessed on March 17, 2026,
<https://www.citizensadvice.org.uk/work/discrimination-at-work/dealing-with-discrimination-at-work/checking-if-its-discrimination/check-if-youre-disabled-under-the-equality-act-work/>
 17. Depression, PTSD, & Other Mental Health Conditions in the Workplace: Your Legal Rights, accessed on March 17, 2026,
<https://www.eeoc.gov/laws/guidance/depression-ptsd-other-mental-health-conditions-workplace-your-legal-rights>
 18. What are reasonable adjustments, and other definitions - Royal College of Psychiatrists, accessed on March 17, 2026,
<https://www.rcpsych.ac.uk/improving-care/providing-reasonable-adjustments/what-are-reasonable-adjustments>
 19. Traumatic Brain Injuries and Work - Equip For Equality, accessed on March 17, 2026, <https://www.equipforequality.org/resource/traumatic-brain-injuries-and-work/>
 20. My Rights as a Person with a Traumatic Brain Injury (TBI) - Disability Rights South Carolina, accessed on March 17, 2026,
<https://www.disabilityrightssc.org/my-rights-as-a-person-with-a-traumatic-brain-injury-tbi/>
 21. Understanding Academic Reasonable Accommodations for Post-9/11 Veterans With Psychiatric Diagnoses, Part 1: The Foundation - PMC, accessed on March 17, 2026, <https://pmc.ncbi.nlm.nih.gov/articles/PMC6368923/>
 22. Section 4: Reasonable Academic Adjustments for Disabilities and Long-term Conditions - University College London, accessed on March 17, 2026,
<https://www.ucl.ac.uk/study/current-students/academic-manual/chapters/chapter-2-student-support-framework/section-4-reasonable-academic-adjustments-disabilities-and-long-term-conditions>
 23. Reasonable adjustments for disabled students: Universities guide - Browne Jacobson LLP, accessed on March 17, 2026,
<https://www.brownejacobson.com/insights/reasonable-adjustments-for-disabled-students-universities-guide>
 24. Disability Discrimination In Universities - Stephenson Solicitors LLP, accessed on March 17, 2026,
<https://www.stephensons.co.uk/site/blog/personal-injury-blog/disability-discrimination-in-universities>
 25. Disability discrimination in schools - Citizens Advice, accessed on March 17, 2026,
<https://www.citizensadvice.org.uk/family/education/disability-discrimination-in-schools/>
 26. Obligations of higher education institutions to students with disabilities highlighted following student death - Penningtons Manches Cooper, accessed on March 17, 2026,
<https://www.penningtonslaw.com/insights/obligations-of-higher-education-institutions>

- [ns-to-students-with-disabilities-highlighted-following-student-death/](#)
27. Disabled Students - Students' Union UCL, accessed on March 17, 2026, <https://studentsunionucl.org/advice-and-support/support/disabled-students>
 28. Your Reasonable Academic Adjustments | Study at UCL, accessed on March 17, 2026, <https://www.ucl.ac.uk/study/support-and-wellbeing/disability-and-neurodiversity/your-reasonable-academic-adjustments>
 29. Reasonable adjustments (or accommodations) for disabled students - TASO, accessed on March 17, 2026, <https://taso.org.uk/intervention/reasonable-adjustments-or-accommodations-for-disabled-students/>
 30. Disability discrimination in further and higher education - National Autistic Society, accessed on March 17, 2026, <https://www.autism.org.uk/advice-and-guidance/education/resolving-differences/disability-discrimination-in-further-and-higher-ed>
 31. University Of Bristol V Dr Robert Abrahart – An Analysis Of The High Court's Judgment, accessed on March 17, 2026, <https://www.shma.co.uk/our-thoughts/university-of-bristol-v-dr-robert-abrahart/>
 32. Landmark decision impacting universities' duty of care obligations | Regulatory Blog, accessed on March 17, 2026, <https://www.kingsleynapley.co.uk/insights/blogs/regulatory-blog/landmark-decision-impacting-universities-duty-of-care-obligations>
 33. University's Duties towards Disabled Student - The University of Bristol v Dr Robert Abrahart [2024] EWHC 299 - cms.law, accessed on March 17, 2026, <https://cms.law/en/gbr/legal-updates/university-s-duties-towards-disabled-student-the-university-of-bristol-v-dr-robert-abrahart-2024-ewhc-299>
 34. The importance of reasonable adjustments - HEPI, accessed on March 17, 2026, <https://www.hepi.ac.uk/2025/03/18/the-importance-of-reasonable-adjustments/>
 35. Mental Health in the context of Disability - UMHAN, accessed on March 17, 2026, <https://www.umhan.com/resources/MH-context-disability>
 36. Disability discrimination in college and university - Scope, accessed on March 17, 2026, <https://www.scope.org.uk/advice-and-support/discrimination-college-university-education>
 37. Gathering Evidence for Complaints - Disabled Students UK, accessed on March 17, 2026, <https://disabledstudents.co.uk/resources/evidence-for-complaints/>
 38. About us - Disclosure and Barring Service - GOV.UK, accessed on March 17, 2026, <https://www.gov.uk/government/organisations/disclosure-and-barring-service/about>
 39. DBS Eligibility Guidance | UCL, accessed on March 17, 2026, https://www.ucl.ac.uk/students/sites/students/files/dbs_eligibility_guidance_2022.pdf
 40. Secure handling of DBS certificates | University Secretary's Office, accessed on March 17, 2026, <https://www.bristol.ac.uk/secretary/legal/dbs/storage/>

41. About DBS checks for students - University of Essex, accessed on March 17, 2026, <https://www.essex.ac.uk/staff/dbs/about-dbs>
42. DBS Information for Students and Applicants - Northumbria University, accessed on March 17, 2026, <https://www.northumbria.ac.uk/about-us/university-services/student-library-and-academic-services/registry-records-and-returns/dbs-policy-and-procedures/dbs-information-for-students-and-applicants/>
43. SRS Compliance Team | Student and Registry Services - UCL – University College London, accessed on March 17, 2026, <https://www.ucl.ac.uk/srs/compliance/srs-compliance-team>
44. SRS Compliance | Student and Registry Services - UCL – University College London, accessed on March 17, 2026, <https://www.ucl.ac.uk/srs/srs-compliance>
45. Guide for UCL current students: How to complete a DBS check, accessed on March 17, 2026, https://www.ucl.ac.uk/study/sites/study/files/current_student_dbs_checks_-_guidance_april_2025.pdf
46. Guide for UCL current students: How to complete a DBS check, accessed on March 17, 2026, https://www.ucl.ac.uk/students/sites/students/files/current_student_dbs_checks_-_guidance_september_2023_0.pdf
47. Handling of DBS certificate information - University of Birmingham, accessed on March 17, 2026, <https://www.birmingham.ac.uk/university/colleges/professional/external/admissions/dbs/dbs-certificates>
48. IOE, UCL's Faculty of Education and Society IOE Student Handbook 2023/24, accessed on March 17, 2026, https://www.ucl.ac.uk/ioe/student-helpdesk/sites/ioe_student_helpdesk/files/ioe_student_handbook_2023-24.pdf
49. UCL Institute of Education Suitability and Safeguarding Policy and Procedures for Initial Teacher Education (ITE) 2025-26, accessed on March 17, 2026, https://www.ucl.ac.uk/ioe/student-helpdesk/sites/ioe_student_helpdesk/files/ite_suitability_and_safeguarding_policy_for_2025-26_entry_1_0.pdf
50. Suitability and Safeguarding Policy for Initial Teacher Education (ITE) 2024-5 - University College London, accessed on March 17, 2026, https://www.ucl.ac.uk/ioe/student-helpdesk/sites/ioe_student_helpdesk/files/suitability_and_safeguarding_policy_2024-25.pdf
51. University Breach of Contract and Negligence Claims - Doyle Clayton, accessed on March 17, 2026, <https://www.doyleclayton.co.uk/services/education/university-breach-of-contract-and-negligence-claims/>
52. Showing proof of financial loss - OIAHE, accessed on March 17, 2026, <https://www.oiahe.org.uk/about-us/reviewing-complaints/what-happens-when-a-student-complains-to-us/putting-things-right/showing-proof-of-financial-loss/>
53. Scholarships and funding FAQs | UCL Institute of Education, accessed on March 17, 2026,

- <https://www.ucl.ac.uk/ioe/about-ioe/our-global-reach/scholarships-and-funding/scholarships-and-funding-faqs>
54. University professional negligence claims are they possible? - Healys LLP, accessed on March 17, 2026, <https://healys.com/news-events-insights/university-professional-negligence-claims-are-they-possible>
 55. A guide to subject access | ICO, accessed on March 17, 2026, <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/subject-access-requests/a-guide-to-subject-access/>
 56. Individual Rights including Subject Access Requests (SARs) | Data Protection - UCL – University College London, accessed on March 17, 2026, <https://www.ucl.ac.uk/data-protection/reporting-breach-personal-data/individual-rights-including-subject-access-requests-sars>
 57. UCL, accessed on March 17, 2026, https://www.ucl.ac.uk/data-protection/sites/data-protection/files/subject_access_request_dec_20.doc
 58. Make a subject access request | ICO, accessed on March 17, 2026, <https://ico.org.uk/for-the-public/make-a-subject-access-request/>
 59. Handling a Subject Access Requests (SARs) | Data protection guidance - UCL, accessed on March 17, 2026, <https://www.ucl.ac.uk/data-protection/guidance-staff-students-and-researchers/practical-data-protection-guidance-notice/handling-subject>
 60. Zoom Meetings, Webinar, and Team Chat Data Retention Standard, accessed on March 17, 2026, https://support.zoom.com/hc/en/article?id=zm_kb&sysparm_article=KB0074786
 61. Changes to Zoom cloud recording retention - London - UCL, accessed on March 17, 2026, <https://www.ucl.ac.uk/isd/services/communicate-collaborate/zoom/changes-to-zoom-cloud-recording-retention>
 62. Zoom | Information Services Division - UCL – University College London, accessed on March 17, 2026, <https://www.ucl.ac.uk/isd/services/communicate-collaborate/zoom>
 63. Student Support and Wellbeing Services: teams and responsibilities - University College London, accessed on March 17, 2026, <https://www.ucl.ac.uk/srs/our-teams/student-support-and-wellbeing-services-teams-and-responsibilities>
 64. Meet the Student Support and Wellbeing Services team | Study at UCL, accessed on March 17, 2026, <https://www.ucl.ac.uk/study/support-and-wellbeing/about-us/meet-student-support-and-wellbeing-services-team>
 65. Leadership team | Study at UCL, accessed on March 17, 2026, <https://www.ucl.ac.uk/study/support-and-wellbeing/about-us/meet-student-support-and-wellbeing-services-team/leadership-team>
 66. Safeguarding children and adults at risk: Policy and Procedure (Staff and Students) - UCL, accessed on March 17, 2026,

- <https://www.ucl.ac.uk/human-resources/hr-policies-procedures-and-advice/z-policies/safeguarding-children-and-adults-risk-policy-and>
67. UCL Professional Services Careers Framework Education Administration and Student Support (EASS), accessed on March 17, 2026,
https://www.ucl.ac.uk/career-frameworks/sites/career_frameworks/files/ucl_eass_framework_may_2020_1.pdf
 68. Job details: Head of Student Support & Wellbeing Services (Service Excellence) - University College London, accessed on March 17, 2026,
<https://www.ucl.ac.uk/work-at-ucl/search-ucl-jobs/details?jobId=41717>
 69. Disability, Neurodiversity and Mental Health and Wellbeing team | Study at UCL, accessed on March 17, 2026,
<https://www.ucl.ac.uk/study/support-and-wellbeing/about-us/meet-student-support-and-wellbeing-services-team/disability-neurodiversity-and-mental-health-and-wellbeing-team>
 70. Support student mental health and wellbeing | Staff - UCL – University College London, accessed on March 17, 2026,
<https://www.ucl.ac.uk/staff/task/support-student-mental-health-and-wellbeing>
 71. Meet our senior team | UCL Institute of Education, accessed on March 17, 2026,
<https://www.ucl.ac.uk/ioe/people/meet-our-senior-team>
 72. Reconnecting with Strategic Partners: NIE Director at Global Forums | NIEWS #123, accessed on March 17, 2026,
<https://nieews.nie.edu.sg/mar2023/report-card/reconnecting-with-strategic-partners-nie-director-at-global-forums>
 73. About | Professional Services - UCL – University College London, accessed on March 17, 2026, <https://www.ucl.ac.uk/professional-services/whos-who>
 74. IOE Student Orientation - London - UCL, accessed on March 17, 2026,
<https://www.ucl.ac.uk/ioe/student-helpdesk/ioe-student-orientation>
 75. IOE, UCL's Faculty of Education and Society Suitability and Safeguarding Policy for ITE, accessed on March 17, 2026,
https://www.ucl.ac.uk/ioe/student-helpdesk/sites/ioe_student_helpdesk/files/ite_suitability_and_safeguarding_policy_2023-24.pdf
 76. Director of Education Administration and Student Support (Maternity Cover) – Open to current UC[...] at UCL Eastman Dental Institute | Apply now! – StudySmarter – Talents, accessed on March 17, 2026,
<https://talents.studysmarter.co.uk/companies/ucl-eastman-dental-institute/director-of-education-administration-and-student-support-maternity-cover-open-to-current-uc-20127790/>
 77. Damages for misrepresentation: an overview - Practical Law - Thomson Reuters, accessed on March 17, 2026,
[https://uk.practicallaw.thomsonreuters.com/w-011-9622?transitionType=Default&contextData=\(sc.Default\)](https://uk.practicallaw.thomsonreuters.com/w-011-9622?transitionType=Default&contextData=(sc.Default))
 78. Misrepresentation in contract law | UK contract guide - Harper James Solicitors, accessed on March 17, 2026,
<https://harperjames.co.uk/article/contracts-misrepresentation/>
 79. What is Misrepresentation in Employment? | LegalVision UK, accessed on March

- 17, 2026, <https://legalvision.co.uk/employment/misrepresentation-employment/>
80. High Court considers bank's vicarious liability for fraudulent misrepresentations made by former employee | Herbert Smith Freehills Kramer | Global law firm, accessed on March 17, 2026, <https://www.hsfkramer.com/notes/bankinglitigation/2024-04/high-court-considers-banks-vicarious-liability-for-fraudulent-misrepresentations-made-by-former-employee>
81. Public Liability: Can an Employee Be Held Personally Liable? - Insync Insurance, accessed on March 17, 2026, <https://www.insyncinsurance.co.uk/knowledge-centre/articles/public-liability-employee-liable/>
82. When can an employee or a self-employed individual be personally liable for financial losses resulting from their act or omission?, accessed on March 17, 2026, <https://www.partnerslaw.co.uk/news/when-can-an-employee-or-a-self-employed-individual-be-personally-liable-for-financial-losses-resulting-from-their-act-or-omission>
83. Vicarious Liability Lecture | LawTeacher.net, accessed on March 17, 2026, <https://www.lawteacher.net/lectures/tort-law/employers-liability/vicarious-liability/>
84. Vicarious Liability in the Supreme Court: Can we finally say it is no longer on the move?, accessed on March 17, 2026, <https://legalresearch.blogs.bris.ac.uk/2020/04/vicarious-liability-in-the-supreme-court-can-we-finally-say-it-is-no-longer-on-the-move/>
85. What Is Vicarious Liability? UK Law Explained - MFMac, accessed on March 17, 2026, <https://www.mfmac.com/insights/personal-injury/the-modern-law-on-vicarious-liability/>
86. Vicarious Liability - the UK Supreme Court hands down two important decisions., accessed on March 17, 2026, <https://www.globalworkplaceinsider.com/2020/04/vicarious-liability-the-uk-supreme-court-hands-down-two-important-decisions/>
87. Negligence in the delivery of higher education – how vulnerable are our universities?, accessed on March 17, 2026, <https://www.emerald.com/jea/article/40/4/390/195008/Negligence-in-the-delivery-of-higher-education-how>
88. Vicarious liability - Discrimination at work - Acas, accessed on March 17, 2026, <https://www.acas.org.uk/discrimination-and-the-law/vicarious-liability>
89. Failure to Make Reasonable Adjustments - Uni Pays For Student's Death - Didlaw, accessed on March 17, 2026, <https://didlaw.com/failure-to-make-reasonable-adjustments-university-to-pay-over-students-death>